

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MONTASER ALSAEIDI and OADI ALSAEDE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, and POLICE
OFFICER MICHAEL IPPOLITO, and POLICE
OFFICER LAUREN CREIGHTON, and POLICE
SERGEANT SEAN LITTLE, and POLICE
OFFICER MICHAEL POWERS, and POLICE
OFFICER JOHN DOE,

Defendants.

COMPLAINT

Index No.: 716291/2022

Jury Trial Demanded

Plaintiffs, MONTASER ALSAEIDI (“Montaser”) and OADI ALSAEDE (“Oadi”) (collectively as “Plaintiffs”), by and through their attorneys, BORRELLI & ASSOCIATES, P.L.L.C., as and for their Complaint against THE CITY OF NEW YORK (“the City”), as well as POLICE OFFICER MICHAEL IPPOLITO, and POLICE OFFICER LAUREN CREIGHTON, and POLICE SERGEANT SEAN LITTLE, and POLICE OFFICER MICHAEL POWERS, and POLICE OFFICER JOHN DOE, in their individual and official capacities (collectively, where appropriate, as “Defendants”), allege upon knowledge as to themselves and their own actions, and upon information and belief as to all other matters, as follows:

NATURE OF THE CASE

1. This is a civil action seeking monetary damages and other redress based upon Defendants’ collective unconstitutional and tortious conduct, specifically the use of excessive force, false arrest, false imprisonment, malicious prosecution, denial of right to fair trial, failure to intervene, and negligent training, supervision, and retention, which resulted in the denial of

Plaintiffs' constitutional and civil rights as secured by the Fourth, Fifth, Sixth, and Eighth Amendments, vis-à-vis the Fourteenth Amendment of the United States Constitution, as enforceable through Section 1983 of Title 42 of the United States Code , as well as under New York's common law, and any other cause(s) of action that can be inferred from the facts set forth herein.

2. Specifically, the City and its employees, including but not limited to Defendants Ippolito, Creighton, Little, Powers, and Doe, are liable for their use of excessive force in forcibly handcuffing Plaintiffs on May 18, 2021, and falsely arresting and imprisoning them, without probable cause, on bogus charges of Grand Larceny in the Third Degree, Burglary in the Third Degree, and Criminal Possession of Stolen Property in the Third Degree, which Defendants knew to be false, and then for initiating and acting in furtherance of Plaintiffs' prosecution without probable cause and while ignoring evidence that Plaintiffs had not committed any offenses, all while acting with something other than a desire to see the ends of justice served. In furtherance of Plaintiffs' prosecution, Defendant Powers provided inaccurate information and intentionally excluded exculpatory information from his police report pertaining to the incident, thus also denying Plaintiffs' right to a fair trial. Throughout the arrest and subsequent prosecution, Defendants failed to intervene on Plaintiffs' behalf, despite knowing that their constitutional rights were being violated. During Plaintiffs' incarceration for the approximate twenty-six-hour period that followed their arrest, and for the subsequent four months of their prosecution, they were caused to suffer damages, including, but not limited to, economic damages, humiliation, pain and suffering, and personal and professional embarrassment, all as a result of the Defendants' egregious unconstitutional and tortious conduct, before the charges against them were later dismissed by the Queens County Criminal Court.

CONDITIONS PRECEDENT

3. On August 13, 2021, Plaintiffs served a Notice of Claim on the City, which was within ninety days of the accrual of Plaintiffs' state law claims alleged herein.

4. On September 27, 2021, Plaintiffs served an Amended Notice of Claim on the City, which was within ninety days of the accrual of Plaintiffs' state law malicious prosecution claim, as alleged herein.

5. More than thirty days have elapsed since Plaintiffs served the aforementioned Notice of Claim and Amended Notice of Claim on the City, and the City has neglected and/or refused to make adjustment or payment thereon.

6. Plaintiffs commenced this action by filing a Summons with Notice on August 5, 2022, which was within one year and ninety days after the causes of action asserted herein accrued.

PARTIES

7. At all relevant times herein, Plaintiffs Montaser and Oadi were and are residents of Staten Island, New York.

8. At all relevant times herein, the City was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. The New York Police Department ("NYPD"), a mayoral agency of the City, performs all functions of a police department as per the applicable sections of the general municipal law of the City.

10. At all relevant times herein, the individually-named Defendants, Ippolito, Creighton, Little, Powers, and Doe, were and are duly sworn police officers employed by the NYPD, and who were acting under the supervision of the NYPD, within the scope of their

employment, under color of law, and Plaintiffs sue them in their individual and official capacities.

BACKGROUND FACTS

11. On July 29, 2020, Plaintiffs entered into a partnership agreement with Demitrios and Emily Stratakos for the ownership of Jam Juice Vape Shop (“Jam Juice” or “the Store”), located at 209-15 Northern Boulevard, Bayside, New York 11361. As co-owners of Jam Juice, Plaintiffs operated the store, oversaw its day-to-day operations, and purchased and stocked its supplies and merchandise.

12. On May 17, 2021, Plaintiffs had a business dispute with the Stratakoses about ownership of the store. Rather than contesting the Store’s ownership by legal means, the Stratakoses changed the locks to prevent Plaintiffs from entering. In response, Montaser went to the NYPD’s 111th Precinct for assistance, where he met with NYPD Sergeant Jaspreet Gill. Gill told Montaser that his dispute with the Stratakoses was a civil dispute, not criminal, and thus the NYPD would not intervene. Gill further advised Montaser that he may legally call a locksmith to have the Store’s locks changed back, and then enter the Store.

13. That same day, following Gill’s advice, Montaser went to the Store and spoke to Demitrios. In response to Montaser remaining in the store and calling Oadi to join him, Demitrios called the police.

14. At approximately 7:45 p.m., Gill and another NYPD officer from the 111th Precinct responded to Demitrios’s call and arrived at Jam Juice. Gill spoke to Demitrios and Montaser and reviewed the partnership agreement and Plaintiffs’ receipts for merchandise that they purchased for the Store, before determining that Plaintiffs were rightful co-owners of the Store and that there was nothing unlawful about their presence there.

15. Moreover, after Montaser told Gill that he wanted to take merchandise from the store out of fear that the Stratakoses might steal it, Gill facilitated Plaintiffs' removal of that inventory from the Store, which the Store's security cameras captured.

16. Gill explained to Plaintiffs and the Stratakoses that their dispute was a civil business dispute, and that the NYPD would not make any arrests based on either Plaintiffs' or the Stratakoses' allegations that either group was breaking into the Store or unlawfully taking merchandise from the Store.

17. Montaser asked Gill what Plaintiffs should do if the Stratakoses locked them out again, to which Gill reiterated that Plaintiffs should call a locksmith and take care of it themselves.

18. After leaving Jam Juice on the night of May 17, 2021, Plaintiffs saw Demitrios and three other individuals on the Store's security footage, which they were able to access remotely, removing a large amount of inventory from the Store, and then locking its doors to prevent Plaintiffs' entry.

19. The next morning, on May 18, 2021, Plaintiffs returned to Jam Juice. As Gill had instructed them to do, Plaintiffs called a locksmith, who let them into the Store. Plaintiffs proceeded to remove some of the remaining inventory that they had purchased and loaded it into their car. Before Plaintiffs left, the Stratakoses arrived at the Store and called the police again.

20. At approximately 8:30 a.m., NYPD officers from the 111th Precinct, including, but not limited to, Defendants Ippolito, Creighton, Little, Powers, and Doe, arrived at Jam Juice, confronted Plaintiffs, and accused them of breaking into the store and stealing merchandise.

21. Plaintiffs explained to the officers that they had spoken to Sergeant Gill from the 111th Precinct the day before, and that Gill had come to the store and assisted them with

removing their inventory, assured them that no arrests would be made in relation to this dispute because Plaintiffs had the legal right to be in the store and to remove their merchandise, and that it was Gill who had instructed them to use a locksmith to gain entry to the store. Plaintiffs also presented the officers with their partnership agreement that memorialized their stake in the ownership of Jam Juice, as well as receipts for the merchandise that they had recently purchased for the store.

22. Nevertheless, the officers, including, but not limited to, Defendants Ippolito, Creighton, Little, Powers, and Doe, willfully ignored Plaintiffs, and without probable cause or reasonable suspicion to believe that Plaintiffs were committing any crime, first stopped and then forcibly seized Plaintiffs, aggressively handcuffed them, arrested them, searched their persons and their vehicle, and charged them with Burglary in the Third Degree, Grand Larceny in the Third Degree, and Criminal Possession of Stolen Property in the Third Degree, despite knowing that Plaintiffs had not committed any such offenses.

23. Following the seizure, the officers, including, but not limited to, Defendants Ippolito, Creighton, Little, Powers, and Doe, transported Plaintiffs, against their will, to the 111th Precinct, where Plaintiffs continued to be forcibly imprisoned.

24. In furtherance of the false charges brought against Plaintiffs, Defendant Powers intentionally and maliciously excluded all information from his police report pertaining to Plaintiffs' prior interaction with, and explicit direction from, Sergeant Gill, to use a locksmith to gain entry to the store and to remove merchandise from the store. Additionally, in furtherance of the false charges against Plaintiffs, Defendant Powers signed a sworn criminal complaint, intentionally excluding any of the information that Plaintiffs provided him with respect to their interaction with and instruction from Gill.

25. After hours of incarceration at the 111th Precinct, Plaintiffs were taken to another NYPD facility, where they were held until their arraignment.

26. The next day, on May 19, 2021, Plaintiffs were arraigned on charges of Grand Larceny in the Third Degree, Burglary in the Third Degree, and Criminal Possession of Stolen Property in the Third Degree. At arraignment, Plaintiffs pleaded not guilty and were released on their own recognizance, approximately twenty-six hours after their arrest.

27. Plaintiffs were prosecuted over the course of the next four months, necessitating them not to leave New York State while their prosecution was pending, thereby restricting their liberty and ability to travel.

28. On September 15, 2021, the Queens County Criminal Court dismissed all charges brought against Plaintiffs, thus, the criminal case terminated favorably to Plaintiffs.

29. Defendants Ippolito, Creighton, Little, Powers, and Doe, each had the opportunity to intervene on Plaintiffs' behalf to prevent the unlawful and unconstitutional conduct of their fellow officers, but they each failed and refused to take any such action, as the City failed to train them how to lawfully act under such circumstances.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS IPPOLITO,
CREIGHTON, LITTLE, POWERS, AND DOE**
*Violations of the Fourth, Fifth, Sixth, and Eighth Amendments, vis-à-vis the Fourteenth Amendment
of the United State Constitution, vis-a-vis 42 U.S.C. § 1983: Excessive Force, False Arrest, False
Imprisonment, and Malicious Prosecution*

30. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

31. The aforementioned acts of Defendants Ippolito, Creighton, Little, Powers, and Doe, while acting under color of law, including their forcible handcuffing, false arrest, false imprisonment, and malicious prosecution of Plaintiffs, despite not having probable cause or

reasonable suspicion to do so, are in willful and malicious violation of Plaintiffs' rights under the Fourth, Fifth, Sixth, and Eighth Amendments of the United States Constitution, vis-à-vis the Fourteenth Amendment and 42 U.S.C. § 1983.

32. As a direct and proximate result of Defendants Ippolito, Creighton, Little, Powers, and Doe's unconstitutional actions in violation of Section 1983, Plaintiffs have suffered, and continue to suffer, economic damages, including, but not limited to, lost profits and out-of-pocket expenses.

33. As a direct and proximate result of Defendants Ippolito, Creighton, Little, Powers, and Doe's unconstitutional actions in violation of Section 1983, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

34. Defendants Ippolito, Creighton, Little, Powers, and Doe's unconstitutional actions also constitute malicious, willful, and wanton violations of Section 1983, for which Plaintiffs are entitled to an award of punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

State Law Violation: Excessive Force

35. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

36. As fully described above, in violation of New York law, Defendants Ippolito, Creighton, Little, Powers, and Doe, without probable cause, used excessive force in forcibly handcuffing Plaintiffs, for which the City is vicariously liable under the doctrine of *respondeat superior*.

37. As a direct and proximate cause of Defendants' use of excessive force, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

State Law Violation: False Arrest/False Imprisonment

38. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

39. As fully described above, in violation of New York law, Defendants Ippolito, Creighton, Little, Powers, and Doe falsely arrested and imprisoned Plaintiffs, without probable cause, for which the City is vicariously liable under the doctrine of *respondeat superior*.

40. As a direct and proximate cause of Defendants' false arrest and false imprisonment of Plaintiffs, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

State Law Violation: Malicious Prosecution

41. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

42. As fully described above, in violation of New York law, Defendants Ippolito, Creighton, Little, Powers, and Doe, maliciously initiated and acted in furtherance of Plaintiffs'

prosecution, without probable cause, for which the City is vicariously liable under the doctrine of *respondeat superior*.

43. Defendants' malicious prosecution of Plaintiffs commenced in Queens County Criminal Court under Criminal Court Docket Number CR-009883-21QN (Montaser) and CR-009882-21QN (Oadi). The prosecution terminated favorably as to both Plaintiffs on September 15, 2021.

44. As a direct and proximate cause of Defendants' false arrest and false imprisonment of Plaintiffs, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT POWERS

Violations of the Fifth and Sixth Amendments, vis-à-vis the Fourteenth Amendment, vis-a-vis 42 U.S.C. § 1983: Denial of Right to Fair Trial

45. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

46. The aforementioned acts of Defendant Powers, while acting under color of law, in denying Plaintiffs their right to a fair trial, were in willful and malicious violation of Plaintiffs' rights under the Fifth and Sixth Amendments of the United States Constitution, vis-à-vis the Fourteenth Amendment and 42 U.S.C. § 1983

47. As a direct and proximate result of Defendant Powers's unconstitutional actions in violation of Section 1983, Plaintiffs have suffered, and continue to suffer, economic damages, including, but not limited to, lost profits and out-of-pocket expenses.

48. As a direct and proximate result of Defendant Powers's unconstitutional actions in violation of Section 1983, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

49. Defendant Powers's unconstitutional actions also constitute malicious, willful, and wanton violations of Section 1983, for which Plaintiffs are entitled to an award of punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS IPPOLITO,
CREIGHTON, LITTLE, POWERS, AND DOE**
*Violations of the Fourth, Fifth, Sixth, and Eighth Amendments, vis-à-vis the Fourteenth Amendment,
vis-a-vis 42 U.S.C. § 1983: Failure to Intervene*

50. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

51. The aforementioned acts of Defendants Ippolito, Creighton, Little, Powers, and Doe, in failing to intervene to prevent and/or stop the aforesaid improper and unconstitutional conduct by their fellow officers, despite having the opportunity to do so, constituted violations of those same rights that were violated by their fellow officers, including violations of Plaintiffs' rights under the Fourth, Fifth, Sixth, and Eighth Amendments of the United States Constitution, vis-à-vis the Fourteenth Amendment and 42 U.S.C. § 1983.

52. As a direct and proximate result of Defendants Ippolito, Creighton, Little, Powers, and Doe's unconstitutional actions in violation of Section 1983, Plaintiffs have suffered, and continue to suffer, economic damages, including, but not limited to, lost profits and out-of-pocket expenses.

53. As a direct and proximate result of Defendants Ippolito, Creighton, Little, Powers, and Doe's unconstitutional actions in violation of Section 1983, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

54. Defendants Ippolito, Creighton, Little, Powers, and Doe's unconstitutional actions also constitute malicious, willful, and wanton violations of Section 1983, for which Plaintiffs are entitled to an award of punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST THE CITY

State Law Violation: Negligent Training, Supervision, and Retention

55. Plaintiffs repeat, reiterate, and re-allege each and every allegation set forth above with the same force and effect as if fully set forth herein.

56. As fully described above, prior to the events alleged herein, the City knew, or reasonably should have known, that Defendants Ippolito, Creighton, Little, Powers, and Doe had falsely arrested, imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the City and the NYPD, and were unfit to act as police officers.

57. The City also did not properly train Defendants Ippolito, Creighton, Little, Powers, and Doe, not to act in violation of the constitution and civil rights of its citizenry, including Plaintiffs.

58. Despite the City's prior knowledge that Defendants Ippolito, Creighton, Little, Powers, and Doe were unfit to serve as police officers, the City knowingly retained Defendants

Ippolito, Creighton, Little, Powers, and Doe, thereby subjecting Plaintiffs to their improper, illegal, and unconstitutional conduct.

59. As a direct and proximate cause of the City's negligent training, supervision, and retention, Plaintiffs have suffered, and continue to suffer, severe mental anguish and emotional distress, including, but not limited to, humiliation, embarrassment, loss of self-esteem, self-confidence, personal dignity, harm to their personal and professional reputations, stress and anxiety, and emotional pain and suffering, for which they are entitled to an award of monetary damages and other relief.

DEMAND FOR TRIAL BY JURY

60. Plaintiffs demand a trial by jury on all issues and causes of action.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against Defendants as follows:

a. Entering a judgment declaring that Defendants' acts and omissions violate the aforementioned United States and New York laws;

b. Granting preliminary and permanent injunctions against Defendants and their officers, agents, successors, employees, representatives, and any and all persons acting in concert with them, from engaging in each of the unlawful practices, policies, customs, and usages set forth herein;

c. Issuing an order restraining Defendants and their officers, agents, successors, employees, representatives, and any and all persons acting in concert with them, from any retaliation against Plaintiffs for their participation in this litigation;

d. Granting an award of all compensatory damages that Plaintiffs sustained as a result of Defendants' conduct, including all reasonable monetary damages, lost earnings, pain

and suffering, humiliation, emotional damages, and all other damages owed to Plaintiffs in an amount proven at trial, resulting from Defendants' unlawful acts or omissions;

e. Granting an award of punitive damages as against the Individual Defendants to the extent permitted by law;

f. Awarding Plaintiffs their reasonable attorneys' fees, as well as their costs and disbursements incurred in connection with this action, including expert witness fees and other costs;

g. Awarding pre-judgment and post-judgment interest, as provided by law; and

h. Granting Plaintiffs such other and further relief as this Court finds just and proper.

Dated: Garden City, New York
November 2, 2022

Respectfully submitted,

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